

Court No. - 32

Case :- WRIT - C No. - 38780 of 2019

Petitioner :- Anil Kumar

Respondent :- State Of U.P. And 4 Others

**Counsel for Petitioner :- Hanuman Prasad
Dube, Vipul Dube**

**Counsel for Respondent :- C.S.C., Baleshwar
Chaturvedi**

Hon'ble Shashi Kant Gupta,J.

Hon'ble Piyush Agrawal,J.

This writ petition has been filed, inter alia, for the following reliefs:

"(i) Issue a writ, order or direction in the nature of certiorari calling for the records and quashing the entire recovery proceedings initiated against the petitioner including the citation dated 11.11.2019 issued by the respondent no. 5 (Annexure 8 to the writ petition).

(ii) Issue a writ, order or direction in the nature of certiorari calling for the records and quashing the provisional assessment order no. 787 dated 28.01.2019 passed by the respondent no. 3 (Annexure -4 to the writ petition).

(iii) Issue a writ, order or direction in the nature of mandamus commanding the respondents not to realize the amount of Rs.29,51,014/- together with the collection and other charges from the petitioner in pursuance of the impugned recovery proceedings by adopting the coercive method."

Heard the learned counsel for the petitioner, learned counsel for the electricity department and perused the record.

Learned counsel for the petitioner has submitted that the respondents are taking coercive action against the petitioner without giving any opportunity of hearing and without following the provisions contained under the U.P. Electricity

Supply Code 2005.

Considering the facts and circumstances of the case and taking a lenient view in the matter, we direct the petitioner to appear on 12.12.2019 at 11.00 A.M. before the Respondent No.3, Executive Engineer along with his objection already filed by him and adduce his evidence, if any, in support of his contention. The Respondent No.3, thereafter, shall pass a final order by a speaking and reasoned order after considering the objections of the petitioner as well as the contention raised by the petitioner within a period of four weeks thereafter.

For a period of six weeks from today or till the disposal of the representation/objection, whichever is earlier, no coercive action shall be taken against the petitioner. In case of default in filing the objection/representation, as indicated herein above, the present interim order shall stand vacated automatically.

In case the petitioner is aggrieved with the final order, if any, passed against the petitioner, it will be open for the petitioner to file an appeal before the concerned authority under Section 127 of the Electricity Act, 2003 in accordance with law.

It is made clear that in case the petitioner does not appear on the said date fixed, the impugned recovery citation shall stand revived automatically.

With the above observations, the writ petition stands disposed of.

Order Date :- 28.11.2019

Arun